

## 22SMCV02738 22SMCV02738

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-07-16

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### TENTATIVE RULING

Defendant

American Honda Motor Co., Inc.'s Motion to Set Aside/Vacate Judgement is DENIED. Alternatively, the Motion for Partial Judgment Notwithstanding the Verdict is also DENIED.

Defendant

American Honda Motor Co., Inc. to give notice.

### REASONING

Defendant American Honda Motor Co., Inc. ("Defendant") moves for an order setting aside the second amended judgment (the "Judgment") entered on May 4, 2026 and entering judgment that provides for the return of the Subject Vehicle to Defendant with clear title. Alternatively, Defendant moves for an order granting partial judgment notwithstanding the verdict and amending the Judgment to require the return of the Subject Vehicle with clear title.

In opposition, Plaintiff Teresa Zarate Gomez ("Gomez") contends that the Court lacks jurisdiction to rule on the present motion because she filed an appeal of the Judgment on May 18, 2026. The Court agrees.

Code of Civil Procedure Section 916, subdivision (a), which states:

"Except as provided in Sections 917.1 to 917.9, inclusive, and in Section 116.810, the perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial

court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (Code Civ. Proc., § 916, subd. (a).) “The purpose of the automatic stay rule is ‘to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided. The rule prevents the trial court from rendering an appeal futile by altering the appealed judgment or order by conducting other proceedings that may affect it. [Citation.]’ ” (Dowling v. Zimmerman (2001) 85 Cal.App.4th 1400, 1428.)

“To accomplish this purpose, section 916, subdivision (a) stays all further trial court proceedings ‘upon the matters embraced’ in or ‘affected’ by the appeal. In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results. [W]hether a matter is ‘embraced’ in or ‘affected’ by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the ‘effectiveness’ of the appeal.” (Varian Medical Systems, Inc. v. Delfino (2005) 35 Cal.4th 180, 189.) “If so, the proceedings are stayed; if not, the proceedings are permitted.” (Id.) “The fact that the postjudgment or postorder proceeding may render the appeal moot is not, by itself, enough to establish that the proceeding affects the effectiveness of the appeal and should be stayed under section 916. Rather, something more is needed. For example, the trial court proceeding must directly or indirectly seek to ‘enforce, vacate or modify [the] appealed judgment or order.’ ” (Id.) “Or the proceeding must substantially interfere with the appellate court’s ability to conduct the appeal.” (Id. at 190.)

“By contrast, an appeal does not stay proceedings on ‘ancillary or collateral matters which do not affect the judgment [or order] on appeal’ even though the proceedings may render the appeal moot.” (Varian Medical Systems, Inc., supra, 35 Cal.4th 191.) “A postjudgment or postorder proceeding is also ancillary or collateral to the appeal despite its potential effect on the appeal, if the proceeding could or would have occurred regardless of the outcome of the appeal.” (Id.) However, “[t]he automatic stay rule is subject to certain exceptions.” (Id.)

With respect to a motion for judgment notwithstanding the verdict, an appeal does not stay the proceedings. (See Foggy v. Ralph F. Clark & Associates, Inc. (1987) 192 Cal.App.3d 1204, 1213 “[A] motion for judgment notwithstanding the verdict is, just as a motion for new trial, a matter collateral to the judgment. This ruling, just as the Legislature intended,

enables the trial court to consider both a motion for judgment notwithstanding the verdict and a motion for new trial at the same time and avoids what would otherwise be the absurd result of depriving a party of a post-judgment remedy authorized by the Legislature.”). However, “[t]he trial court’s power to grant a motion for JNOV [judgment notwithstanding the verdict] is the same as its power to grant a directed verdict.” (Kephart v. Genuity, Inc. (2006) 136 Cal.App.4th 280, 289.) “The court must accept as true the evidence supporting the jury’s verdict, disregarding all conflicting evidence and indulging in every legitimate inference that may be drawn in support of the judgment. The court may grant the motion only if there is no substantial evidence to support the verdict.” (Id.; see also Stubblefield Construction Co. v. City of San Bernardino (1995) 32 Cal.App.4th 687, 703.) Defendant raises no argument that evidence presented at trial does not support the jury’s verdict. Instead, Defendant seeks to amend the judgment to affirmatively order Plaintiff to return the Subject Vehicle with clear title, arguing that Plaintiff is required to return the Subject Vehicle to avail herself to the restitution remedy under the Song-Beverly Act (“SBA”).

Likewise, there

is no indication that the holding in Foggy applies to motions made under Code of Civil Procedure Section 663 and/or 663a. In fact, the motion fails to cite to any authority to support such assertion. As such, the relief sought by the present motion constitute ‘matters embraced’ in or ‘affected’ by the pending appeal. Even assuming *arguendo* that a motion per Code of Civil Procedure Section 663 and/or 663a were deemed ancillary or collateral matters not affected by appeal, the present motion would still fail. “A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or

erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.

2. A judgment or

decree not consistent with or not supported by the special verdict.” (Code Civ.

Proc., § 663.) Here, the jury never determined whether or not Plaintiff was required to return the Subject Vehicle with clear title to Defendant. (See Special Verdict, 11/3/25; Plf. Second Amended Judgment, 5/4/26.) Although this Court found that the return of the Subject Vehicle is consistent with the general policy of restoring Plaintiff to her position prior to the purchase of the Subject Vehicle, it never made an explicit finding that Plaintiff was required to return the Subject Vehicle in connection with obtaining a restitution remedy. (Min. Order, 3/3/26.) Contrarily, Plaintiff was merely ordered to prepare a new proposed judgment in accordance with the Court's finding. (Min. Order, 3/3/26.) The Judgment, which expressly states: "Return of vehicle with clear title and free of lien shall be determined by post judgment motion" was the result of the March 3, 2026 ruling.

Based on the foregoing, Defendant American Honda Motor Co., Inc.'s Motion to Set Aside/Vacate Judgement is DENIED. Alternatively, the Motion for Partial Judgment Notwithstanding the Verdict is also DENIED.